Secretaries when the demands upon his time do not permit personal attention. The assignments made in this section shall in no way impair the responsibilities and review functions of the several policy, legal, or administrative offices of the Department.

§ 4.2 *Departmental mail.* All mail and papers requiring action at the Secretarial level will be set up for signature by "Secretary of the Interior" (and placed on the appropriate letterhead under existing orders, using "Office of the Secretary" in case of doubt). The Secretary's Mail Center will distribute papers and mail in accordance with the assignments made in §4.1, unless instructions to the contrary are issued by a member of the Secretariat.

§ 4.3 *Succession of authority.* The officers of the Department who are authorized to perform the duties of the Secretary of the Interior in case of the death, resignation, absence, or sickness of the Secretary are designated by the President in Executive Order No. 9866 (June 14, 1947; 12 F. R. 3909).

(R. S. 161, secs. 3, 12, Pub. Law, 404, 79th Cong., 60 Stat. 238, 244; 5 U. S. C. 22)

J. A. KRUG,
Secretary of the Interior.

JULY 3, 1947.

[F. R. Doc. 47-6445; Filed, July 10, 1947; 8:47 a. m.]

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 377]

ALASKA

EXCLUDING A TRACT OF LAND FROM THE TONGASS NATIONAL FOREST AND RESTORING IT TO ENTRY

By virtue of the authority vested in the President by the act of June 4, 1897, 30 Stat. 11, 36 (U. S. C. Title 16, sec. 473), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

The following-described tract of public land in Alaska, occupied as a resort site, and identified by a survey of which the plat and field notes are on file in the Bureau of Land Management, Washington, D. C., is hereby excluded from the Tongass National Forest as hereinafter indicated, and restored, subject to valid existing rights, to application and sale under the trade and manufacturing site act of May 14, 1898, 30 Stat. 413, as amended (U. S. C. Title 48, sec. 461):

TONGASS NATIONAL FOREST

U. S. Survey No. 2403, Lot 93, Herring Bay, 2.14 acres; latitude 55°19'20" N., longitude 131°30'00" W.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

JULY 1, 1947.

[F. R. Doc. 47-6439; Filed, July 10, 1947; 8:46 a. m.]

[Public Land Order 378]

NEW MEXICO

REVOCATION OF EXECUTIVE ORDER NO. 6086 OF MARCH 28, 1933

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 6086 of March 28, 1933, establishing the Rio Grande Wildlife Refuge within Socorro and Sierra Counties, New Mexico, is hereby revoked.

Part of the land released by this order is covered by first form reclamation withdrawal and some of it has been patented. Information as to the status of any particular tract will be furnished on request, by the District Land Office at Las Cruces, New Mexico, where applications for any land subject to disposal shall be filed.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on September 2, 1947. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from September 2, 1947 to December 2, 1947, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from August 12, 1947, to September 2, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on September 2, 1947, shall be treated as simultaneously filed.

(c) *Date for non-preference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on December 2, 1947, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference right filings.* Applications by the general public may be presented during the 20-day period from November 11, 1947, to December 2, 1947, inclusive, and all such applications, together with those presented at 10:00 a. m. on December 2, 1947, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Available information indicates that the lands embraced in the Rio Grande Wildlife Refuge are generally rough in character, being largely canyon walls, but having some areas of fairly level and marsh lands in the floor of the canyon.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

JULY 1, 1947.

[F. R. Doc. 47-6440; Filed, July 10, 1947; 8:46 a. m.]

[Public Land Order 379]

ILLINOIS, IOWA, MINNESOTA, MISSOURI, AND WISCONSIN

RESERVING LANDS FOR USE OF DEPARTMENT OF INTERIOR AS WILDLIFE REFUGE AND MANAGEMENT AREAS

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, and in furtherance of the purposes of and in accordance with the act of March 10, 1934, 48 Stat. 401 (U. S. C. Title 16, secs. 661–666), as amended by the act of August 14, 1946 (60 Stat. 1080), it is ordered as follows:

Subject to valid existing rights, the following-described lands in Illinois, Iowa, Minnesota, Missouri, and Wisconsin, are hereby reserved and set apart for the use of the Department of the Interior as wildlife refuge and management areas:

LOCK AND DAM NO. 9

IOWA, ALLAMAKEE COUNTY, FIFTH PRINCIPAL MERIDIAN

Township 97 North, Range 2 West

Section 5: That portion of the west 25 acres of the NE¼NW¼ lying east of the easterly right of way line of the Chicago, Milwaukee, St. Paul and Pacific Railroad as now laid out across said NE¼NW¼.

Section 9: All of Government Lots 1, 2, 3, and 4.

Section 10: All of Government Lot 2.

Section 16: All of Government Lot 1.

Section 17: All of Government Lot 2. That portion of Government Lots 3 and 4 described